

STATE OF NEW YORK

756--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. SOLAGES, DURSO, GRIFFIN, SCHIAVONI, STERN, BURROUGHS, KASSAY, O'PHARROW, RAMOS, GANDOLFO, DeSTEFANO, FITZPATRICK, MIKULIN, K. BROWN, RA, KIM, COLTON, GIGLIO, SANTABARBARA, BRABENEC, SMITH -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to certain construction projects

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 3602 of the education law is
2 amended by adding a new paragraph nn to read as follows:

3 nn. "Construction project" shall mean the construction, recon-
4 struction, rehabilitation or improvement of any school building where a
5 district receives any apportionment for capital outlays, debt service,
6 or building aid under subdivision six of this section and the school
7 building is sited within the Long Island region as defined in subpara-
8 graph two of paragraph a of subdivision four of this section and the
9 total estimated cost of the contract or contracts for the project is one
10 million dollars or more.

11 § 2. Paragraph a of subdivision 6 of section 3602 of the education law
12 is amended by adding a new subparagraph 13 to read as follows:

13 (13) Each contract involving the awarding of a construction project
14 shall require the use of a project labor agreement, as defined in subdi-
15 vision one of section two hundred twenty-two of the labor law, for all
16 contractors and subcontractors on the project, consistent with paragraph
17 (a) of subdivision two of section two hundred twenty-two of the labor
18 law.

19 § 3. This act shall take effect January 1, 2026, and shall apply to
20 all construction projects for which the commissioner of education has
21 not approved plans and specifications pursuant to section 408 of the
22 education law as of such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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